Showing contexts for: **consumer complaint deficiency service unfair trade** in Veera Srivastava vs Parsvnath Development on 7 March, 2022

Context size: Smallest Smaller Small Current

On 4.5.2015, the opposite party sent the letter to the complainant of offer of possession for carrying out the fit out work in the flat alongwith the final statement of account, wherein the delay penalty was credited by the opposite party upto March, 2015 for a sum of Rs.6,19,875.00,when the completion certificate was applied with the concerned authority. Thereafter, vide mail dated 11.7.2015, the complainants raised certain objections to the offer for fit out letter and again asked the exact date of possession of the flat. It is submitted that the opposite party duly replied to the said mail vide their reply dated 12.8.2015.It is most humbly submitted that as on date the complainants have made a payment of Rs.34,18,559.00 towards the cost of the flat, car parking charges and free hold conversion charges. The opposite party as per flat buyer agreement has credited all delay compensations etc. to the complainants account.

The construction in the tower in which the flat of the complainant is located has been completed and the completion certificate has been applied for by the opposite party so that the sale deeds of the flat may by executed in favour of the complainant. It is pertinent to state that the said project consist of 10 towers wherein the possession of the flats has already been offered in 7 towers wherein the buyers are residing peacefully. It is submitted that in rest three towers bearing no.T-4, 5 and 6, the construction has been completed and few customers have taken the possession of the flat in these towers for carrying out the fit out work in their flats. The opposite parties have not at any point of time, violated or breached the provisions of the flat buyer agreement dated 7.11.2006, Hence, the captioned **complaint** has been filed without any cause of action. The complainants have not been able to establish any **deficiency** of **service** or **consumer** dispute as contemplated under the **Consumer** Protection Act, 1986 which could be attributable to the opposite parties. Therefore, the **complaint** is liable to be dismissed in limine. No cause of action arisen in favour of the complainants and against the opposite parties for the purpose of filing the present **complaint**. In fact the **complaint** has been filed without any substantial proof. It is submitted that bare allegation in the **complaint** without any proof and without any alleged act on behalf of the opposite parties

> necessary to charge it for **unfair trade** practice of **deficie**ncy of **service**, cannot be taken as gospel truth by this Hon'ble Commission to entertain the present **complaint** and hence, the **complaint** is liable to be dismissed under section 12(3) of the **Consumer** Protection Act, 1986.

Now it is clear that there is **deficie**ncy of **service** on the part of the opposite party and also they are liable for **unfair trade** practice. For calculating the compensation/damages we are inclined that after two years the complainants are entitled to get the reliefs from the opposite parties. The cut-off date is May 2010. This is the date from which the amount of compensation/damages and other shall be calculated. The built up area of the concerned flat is 102.19 m². Keeping in view all the above mentioned facts, we come to the following conclusions:-

> This is a case where the allottee has been given an allotment letter on 07.11.2006 and thereafter the complainant and opposite parties entered into an agreement for giving the possession of unit number T 5-1104. The allotment letter has specifically offered the delivery of possession of the unit within 36 months with grace period six months total 42 months meaning thereby that the said unit was to be handed over by May 2010.

> In this case the opposite parties issued many letters extending the time of delivery of possession but failed to deliver the possession within stipulated time. The opposite parties were showing daydreams to the complainant and other allottees but actually they were earning interest on the deposited amount of the allottees. A person who invests such a huge amount to get a flat for himself and his family must come under pressure and depression if not get the flat within time. The offer given by the opposite parties has been accepted by the complainant so now the opposite parties are bound by the promise and it is the duty to provide the flat within the time as specified by them. This is a clear case of **deficie**ncy in **service** and **unfair trade** practice.

> Per Mr. Rajendra Singh, Member: This **complaint** has been filed by the complainant under section 17 of the **Consumer** Protection Act, 1986.

This **complaint** has been filed by the complainant praying for a direction, to the opposite parties to rectify the inherent defects in the Flat No. T5-701 having an area 202.06 square meters and to provide all the facilities/amenities addendum to the entire project, to direct the opposite parties to pay an interest @24% on the amount deposited by the complainant with the opposite parties from the respective dates of deposits till the date of possession, to direct the opposite parties to pay appropriate amount towards damages for committing serious **deficie**ncy in **service** and to pay appropriate amount towards compensation occasioned by the complainant, to direct the opposite parties to pay an amount of ₹ 20,000 per month towards rent payable with effect from June 2009 till the physical delivery of possession of fully furnished flat, to direct the opposite parties to pay the difference in the cost of escalation which shall be incurred at the time of the execution of the registered sale deed in view of the delay caused by the builder in delivery of possession, to award separate compensation and damages to the complainants for the loss and inconvenience caused to them by the **deficie**ncy in **services** coupled with **unfair trade** practice committed by the opposite parties, to direct the opposite parties to pay appropriate punitive/exemplary damages on account of mental agony, harassment and, underwent by the complainants and also taking into consideration the severity of the **deficie**ncy in **service** committed by the builder, to direct the opposite parties not to charge any **service** tax in pursuance of finance active, 2010 since the possession of the flat is to be provided to the ear 2009 and it is on account of the international and deliberate delay committed by the builder which is the reason for this payment of tax, to direct the opposite parties to pay a sum of ₹ 50,000 towards cost of the case and any other relief/order which the Hon'ble State Commission bus may deem fit and proper in the circumstances of the case.

On 4.5.2015, the opposite party sent the letter to the complainant of offer of possession for carrying out the fit out work in the flat alongwith the final statement of account, wherein the delay penalty was credited by the opposite party upto March, 2015 for a sum of Rs.6,19,875.00,when the completion certificate was applied with the concerned authority. Thereafter, vide mail dated 11.7.2015, the complainants raised certain objections to the offer for fit out letter and again asked the exact date of possession of the flat. It is submitted that the opposite party duly replied to the said mail vide their reply dated 12.8.2015.It is most humbly submitted that as on date the complainants have made a payment of Rs.39,14,916.00 towards the cost of the flat, car parking charges and free hold conversion charges. The opposite party as per flat buyer agreement has credited all delay compensations etc. to the complainants account.

> The construction in the tower in which the flat of the complainant is located has been completed and the completion certificate has been applied for by the opposite party so that the sale deeds of the flat may by executed infavour of the complainant. It is pertinent to state that the said project consist of 10 towers wherein the possession of the flats has already been offered in 7 towers wherein the buyers are residing peacefully. It is submitted that in rest three towers bearing no.T-4, 5 and 6, the construction has been completed and few customers have taken the possession of the flat in these towers for carrying out the fit out work in their flats. The opposite parties have not at any point of time, violated or breached the provisions of the flat buyer agreement dated 07.02.2007 , Hence, the captioned **complaint** has been filed without any cause of action. The complainants have not been able to establish any **deficie**ncy of **service** or **consumer** dispute as contemplated under the **Consumer** Protection Act, 1986 which could be attributable to the opposite parties. Therefore, the **complaint** is liable to be dismissed in limine. No cause of action arisen in favour of the complainants and against the opposite parties for the purpose of filing the present **complaint**. In fact the **complaint** has been filed without any substantial proof. It is submitted that bare allegation in the **complaint** without any proof and without any alleged act on behalf of the opposite parties necessary to charge it for **unfair trade** practice of **deficie**ncy of **service**, cannot be taken as gospel truth by this Hon'ble Commission to entertain the present **complaint** and hence, the **complaint** is liable to be dismissed under section 12(3) of the **Consumer** Protection Act, 1986.

Now it is clear that there is **deficie**ncy of **service** on the part of the opposite party and also they are liable for **unfair trade** practice. For calculating the compensation/damages we are inclined that after two years the complainants are entitled to get the reliefs from the opposite parties. The cut-off date is August 2010. This is the date from which the amount of compensation/ damages and other shall be calculated. The area of the concerned flat is 202.06 m^2. Keeping in view all the above mentioned facts, we come to the following conclusions:-

> This is a case where the allottee has been given an allotment letter/flat buyer agreement executed on 7 February 2007 and thereafter the complainant and opposite parties entered into an agreement for giving the possession of unit number T 5-701. The allotment letter has specifically offered the delivery of possession of the unit within 36 months

with grace period six months total 42 months meaning thereby that the said unit was to be handed over by August 2010.

In this case the opposite parties issued many letters extending the time of delivery of possession but failed to deliver the possession within stipulated time. The opposite parties were showing daydreams to the complainant and other allottees but actually they were earning interest on the deposited amount of the allottees. A person who invests such a huge amount to get a flat for himself and his family must come under pressure and depression if not get the flat within time. The offer given by the opposite parties has been accepted by the complainant so now the opposite parties are bound by the promise and it is the duty to provide the flat within the time as specified by them. This is a clear case of **deficie**ncy in **service** and **unfair trade** practice.